ARE WE REALLY FREE?

Is the freedom we have as South Africans real or it's just a dummy so that we don't keep fighting?



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ABOUT THE AUTHOR

Luyanda Fenene originates from the Eastern Cape, rooted in Ngqeleni (KwaZulu, Ngcacani) and raised in Mthatha. His early educational path began at Ngqeleni Junior Secondary School (Grades 1–6), continuing through Dikiso SPS, Sidanda SPS, and Zweli JSS (Grades 7–8), Dalubuhle JSS (Grade 9), Xolilizwe Sangoni Comprehensive Secondary School, and Sandi Senior Secondary School (Grades 11–12). He pursued higher education at Walter Sisulu University (Iyunivesithi Walter Sisulu), earning a Bachelor of Education (FET) majoring in English First Additional Language (FAL) and History (2018–2022, graduated 2023). He is currently pursuing his Bachelor of Education Honours degree, specializing in historical pedagogy, socio-political systems, and land discourse in South Africa.

EXECUTIVE ABSTRACT & THESIS STATEMENT

This monograph investigates the foundational question of post-1994 South African liberation: Has genuine sovereignty and liberation been achieved for the African majority, or has constitutional democracy functioned as a pacification mechanism designed to halt resistance without restoring stolen land and political authority? By tracing the evolution of governance from pre-colonial communal land tenure through European colonial conquest, the British legal regime, the Apartheid National Party (1948–1994), and the contemporary African National Congress (ANC) administration, this study evaluates structural continuities in state power. Central to this inquiry is the status of indigenous Kings and traditional leaders—once the primary custodians of land and military resistance—who have been transformed into state-salaried administrators under modern constitutional oversight.

INTRODUCTION

The Illusion of Liberation and the Unresolved Land Question

The political transition of 1994 in South Africa is widely celebrated as a triumph of democratic liberation. However, thirty years into constitutional rule, a fundamental paradox remains unresolved: the persistent economic disenfranchisement of the African majority and the retention of colonial land distribution patterns. This work critiques the assertion that political suffrage equates to true freedom. It poses an uncompromising question: Is post-apartheid freedom authentic sovereignty, or an institutional "dummy" engineered to defuse revolutionary struggle while preserving imperial property relations?

CHAPTER 1

Pre-Colonial Governance and Indigenous Sovereignty

Prior to European merchant expansion and imperial conquest, the social, political, and economic organization of Southern African societies was rooted in communal land stewardship and hereditary monarchical leadership. As historical scholar Archie Mafeje (1991) articulated, indigenous land tenure was defined by usability and communal belonging rather than private, alienable title deeds. The King (*Ikumkani*) or Chief (*Inkosi*) held land not as a personal commercial asset, but in trust for the entire nation.

In pre-colonial polities—such as the AmaXhosa, AmaZulu, AbaThembu, Bapedi, and Basotho kingdoms—the monarch derived authority from the people through communal council consensus (*Inkundla* or *Pitso*). Land was allocated to households based on need for cultivation and pastoral grazing. No individual possessed the legal right to buy, sell, or permanently alienate land away from the collective. As Mahmood Mamdani (1996) noted in *Citizen and Subject*, pre-colonial African governance operated under customary norms where the legitimacy of leadership was directly bound to the protection of the community's territory and pastoral sustenance.

CHAPTER 2

Colonial Conquest, Royal Resistance, and Land Robbery

The arrival of Jan van Riebeeck and the Dutch East India Company (VOC) at Table Bay in 1652 initiated a multi-century project of territorial dispossession. Colonial expansion transformed from maritime resupply operations into armed agrarian encroachment, directly clashing with indigenous sovereign kingdoms. The Khoisan societies were the first to face systematic dispossession through military subjugation and displacement from ancestral pastures.

As European settlers moved inland, they encountered powerful, organized African monarchies. The Eastern Cape frontier became the site of the Hundred Years' War (1779–1879), where consecutive Xhosa Kings—including King Hintsa kaKhawuta of the AmaGcaleka—defended their territorial integrity against British colonial forces. The imperial betrayal and murder of King Hintsa in 1835 by British troops under Sir Harry Smith remains a pivotal symbol of colonial land theft and royalty desecration (Peires, 1982).

> *"The subjugation of African kingdoms was not merely a conquest of people, but a systematic destruction of indigenous tenure systems to enforce European land title deeds and force independent agrarian producers into wage labor." — Bernard Makhosezwe Magubane (1979)*

Similarly, in the Anglo-Zulu War of 1879, King Cetshwayo kaMpande led the Kingdom of Zululand against British forces, achieving a historic victory at Isandlwana before eventual subjugation. Across the interior, King Sekhukhune of the Bapedi and King Moshoeshoe of the Basotho mounted sustained resistance against both British imperialists and Boer Voortrekkers. Colonial victory was achieved not through moral superiority, but through superior firearms, scorched-earth military tactics, and structural trickery.

CHAPTER 3

Institutionalized Oppression: From Colonial Systems to the National Party

Following military conquest, colonial authorities recognized that holding land required legal and economic mechanisms to prevent African self-sufficiency. The British introduced taxes (such as the Glen Grey Act of 1894 authored by Cecil John Rhodes) designed to force indigenous Africans off communal land and into the mines and farms as cheap labor (Bundy, 1979).

The creation of the Union of South Africa in 1910 consolidated British imperialists and Boer republicans into a unified white minority state. In 1913, the Native Land Act was passed, legally restricting African land ownership to a mere 7% (later increased to 13% under the Native Trust and Land Act of 1936) of the nation's total land area. As Sol Plaatje (1916) famously wrote in *Native Life in South Africa*: "Awaking on Friday morning, June 20, 1913, the South African Native found himself, not actually a slave, but a pariah in the land of his birth."

When the Afrikaner-dominated National Party came to power in 1948 under Daniel François Malan, it codified existing colonial segregation into the rigid system of Apartheid. Central to Apartheid strategy was the Bantu Authorities Act of 1951 and the Promotion of Bantu Self-Government Act of 1959. These laws established "Bantustans" or "Homelands" (such as the Transkei, Ciskei, Bophuthatswana, and KwaZulu).

Legislative Framework	Primary Purpose & Impact on Land	Effect on Traditional Leadership
Glen Grey Act (1894)	Introduced individual title and hut tax to force Africans into wage labor.	Bypassed traditional councils in favor of colonial district councils.
Natives Land Act (1913)	Dispossessed Africans of 93% of South African land; outlawed sharecropping.	Stripped Kings of territorial jurisdiction outside native reserves.
Bantu Authorities Act (1951)	Created ethnic Homelands (Bantustans); entrenched spatial segregation.	Transformed Chiefs into state-salaried administrators under police oversight.
Bantu Self-Gov Act (1959)	Deprived Africans of South African citizenship, assigning them to Homelands.	Co-opted traditional rulers to enforce Apartheid pass laws and influx control.

Under the Bantustan system, the Apartheid regime manipulated traditional leadership. Chiefs and Kings who resisted—such as King Sabata Dalindyebo of AbaThembu, who fiercely opposed Kaiser Matanzima and the independence of Transkei—were deposed, exiled, or persecuted. Conversely, those who complied were granted government stipends, vehicles, and administrative power over crowded reserves.

CHAPTER 4

Structural Continuity: Comparing National Party & ANC Governance

The political settlement reached during the CODESA negotiations (1990–1994) resulted in the adoption of the 1996 Constitution. While this transition secured universal franchise, civil liberties, and a democratic parliament, critical political scholars argue that it left the underlying economic architecture and land distribution intact (Ntsebeza, 2007).

A rigorous comparative analysis between the administrative mechanics of the Apartheid National Party and the post-1994 African National Congress reveals significant structural continuities. While the ANC operated as an armed liberation movement fighting for black emancipation, its transition into a ruling party saw the adoption of neo-liberal economic frameworks (such as GEAR in 1996) and the preservation of colonial-era property rights through Section 25 of the Constitution (the "property clause").

Dimension	National Party Regime (1948–1994)	ANC Administration (1994–Present)
Land Ownership Model	State-enforced private white ownership over 87% of land; Africans relegated to reserves.	Protection of existing private property rights (Sec 25); "Willing Buyer, Willing Seller".
State Power Structure	Centralized bureaucratic state utilizing security apparatus to maintain control.	Centralized party-state machine using state apparatus and patronage networks.
Traditional Leadership	Salaried administrative agents under Bantu Authorities Act to manage reserves.	Salaried state officials under Traditional Leadership Framework Act; state recognition required.
Economic Architecture	Minerals-Energy Complex owned by white corporate capital and state enterprises.	Minerals-Energy Complex preserved; Black Economic Empowerment (BEE) elite inclusion.

The central critique articulated by grassroots movements and land activists is that the ANC state has acted as a custodian of colonial property relations rather than a revolutionary redistributor. By adopting market-based land reform ("willing buyer, willing seller"), the state placed the burden of purchasing stolen land onto the national treasury, leaving over 70% of commercial farmland in the hands of white owners three decades after 1994.

CHAPTER 5

The Land Question, Co-optation of Kingship, and Systemic Reform

The core grievance of indigenous South Africans centres on land restoration: If the ANC was indeed a liberation movement fighting to return stolen land, why does the land remain under corporate, state, and minority ownership rather than being returned to its original custodians?

In pre-colonial Africa, Kings were not absolute monarchs operating above the people, nor were they employees of a central government. They were the living symbols of national sovereignty and the ultimate custodians of land. Today, under the Traditional and Khoi-San Leadership Act, a King cannot be officially recognized without executive government endorsement, gazetting, and certificate issuing by the President of South Africa.

> *"By subjecting royal recognition to presidential endorsement and funding traditional leaders through state allowances, the post-apartheid state has replicated the colonial model of indirect rule, transforming Kings into state dependents." — Lungisile Ntsebeza (2007)*

This arrangement creates a profound crisis of legitimacy. Kings and traditional authorities receive stipends, official vehicles, and administrative budgets paid for by taxpayers ("commoners"). Instead of leading their people autonomously, allocating land for communal prosperity, and exercising sovereign authority, many traditional leaders have been integrated into local government patronage networks. They are often used by political parties during election cycles to mobilize rural voters.

Furthermore, state-held land in former Homelands is frequently leased to mining conglomerates and commercial interests without the free, prior, and informed consent of local communities, as seen in cases across the Eastern Cape and KwaZulu-Natal. The state acts as the ultimate title holder, maintaining the colonial framework where rural Africans remain subjects on state-controlled land rather than true owners of their heritage.

CONCLUSION

Toward Real Liberation: Revision and Restoration

Is the freedom we have real, or is it a dummy? The evidence indicates that while political franchise and civil rights are real, economic freedom and territorial sovereignty remain unachieved. True freedom cannot exist without land restoration. To correct this historical injustice, the following systemic reforms are necessary:

1. **Constitutional Overhaul of Property Clause:** Amend Section 25 to explicitly allow for land expropriation without compensation for historical redress and communal restoration.
2. **Restoration of Land to Communal Custodianship:** Transfer state-held rural land back to democratic village councils and royal houses acting as genuine trusts for the people.
3. **Depoliticization of Royal Recognition:** Remove political executive power from the recognition of traditional leadership, restoring royal legitimacy to indigenous lineage customs rather than presidential gazetting.
4. **Economic Autonomy for Kingships:** Shift the role of Kings from salaried civil servants to autonomous community guardians empowered to drive rural agrarian development.

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Author's Note & Academic Context:
This manuscript outline represents the pedagogical and scholarly synthesis of Luyanda Fenene's academic training at Walter Sisulu University (B.Ed FET - English FAL & History) and ongoing Honours research. It serves as a structural foundation for a full-length publication interrogating South Africa's post-1994 constitutional settlement and land policy.